

21STCV47587 21STCV47587

County: los-angeles

Division: Civil Law and Motion

Department: 506

Hearing date: 2026-07-09

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Case Number: 21STCV47587 Hearing Date: July 9, 2026 Dept: 506

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE

COUNTY OF LOS ANGELES - CENTRAL DISTRICT

AUTUMN YANCEY-ESTIME,

Plaintiff,

vs.

VANGUARD MANAGEMENT GROUP, et al.,

Defendants.

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CASE NO.: 21STCV47587

[TENTATIVE] ORDER GRANTING COMBINED DEMURRER
AND MOTION TO STRIKE; GRANTING MOTION FOR PROTECTIVE ORDER

Dept. 506

8:30 a.m.

July 9, 2026

On December 30, 2021, Plaintiff Autumn Yancey-Estime filed
this action.

On February 25, 2026, Plaintiff filed
an Amendment to Complaint identifying Brianne Watson as Doe 3.

On May 5, 2026, Watson filed a combined
demurrer and motion to strike. "Motions to
strike and demurrers should be filed as separate documents." (Weil & Brown, Cal. Prac. Guide: Civil Procedure
Before Trial (The Rutter Group June 2026 Update) ¶ 7:162.1.)

On June 1, 2026, Watson filed a motion
for protective order, or in the alternative, a motion to quash Plaintiff's deposition
notice.

DEMURRER AND MOTION TO STRIKE

Only
the first (discrimination), second (harassment), third (retaliation), and sixth

(intentional infliction of emotional distress) causes of action are alleged against "Defendants" and not specific individual defendants. According to Watson's counsel, "Plaintiff's counsel has clarified in written communications that Plaintiff only seeks to name Ms. Watson under the Sixth Cause of Action for IIED and intends to dismiss her from the other Causes of Action." (Motion at p. 5, fn. 1.)

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.)

The

court may, upon a motion or at any time in its discretion: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b).)

A. The Sixth Cause of Action Fails to State a Claim.

“[T]o

state a cause of action for intentional infliction of emotional distress [“IIED”] a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant’s intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff’s suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.’ [Citation.] ‘Conduct, to be ‘outrageous’ must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.’ [Citation.]” (Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1259.)

“While the outrageousness of a defendant’s conduct normally presents an issue of fact to be determined by the trier of fact [citation], the court may determine in the first instance, whether the defendant’s conduct may reasonably be regarded as so extreme and outrageous as to permit recovery.” (Teric v. Blue Cross of California (1989) 209 Cal.App.3d 878, 883.) When a plaintiff does not suffer physical injury, the conduct must involve “extreme and outrageous intentional invasions of one’s mental and emotional tranquility.” (Alcorn v. Anbro Engineering, Inc. (1970) 2 Cal.3d 493, 498.)

Plaintiff alleges that “Defendants repeatedly discriminated and harassed Autumn based on her race and gender over the course of two and a half years” and retaliated against her. (Complaint ¶ 82.) Specifically, her employer’s President and Vice President “harassed [Plaintiff], discriminated against her, and intentionally inflicted emotional distress on her”; “sexually harassed [Plaintiff] by, among other things, touching and massaging Autumn’s shoulders without her permission, commenting on [Plaintiff]’s physical body appearance, calling [Plaintiff] ‘beautiful’, commenting on [Plaintiff]’s ‘backside’, and referring to other women in conversations with [Plaintiff] as ‘hot’”; and “did nothing to stop [the President] and provide a safe work environment for [Plaintiff] and others similarly situated at Vanguard.” (Complaint ¶¶ 1-3.) Plaintiff informed Watson when the President made an overtly racist statement, and Watson told Plaintiff that she would talk to the President about it. (Complaint ¶ 37.) Watson said “she supported whatever decision [Plaintiff] made, that she should not be made to feel uncomfortable at work, and that she was free to take a couple of days off to consider what she wanted to do next.” (Complaint ¶ 37; see Complaint ¶ 38.)

Although

Plaintiff notes her allegation that “each of the Defendants named herein acted as the employee, agent, servant, partner, alter-ego and/or joint venture of one or more of the other Defendants” (Complaint ¶ 19), she also highlights that her factual allegations involve only acts by the President and Vice President, not Watson. (Opposition at pp. 5-6.)

The

demurrer is sustained on this ground.

B. The Entire Doe Amendment is Barred.

Watson

argues that the Doe amendment should be stricken because the IIED claim is time-barred and does not relate back to the filing on the complaint. (Demurrer at pp. 11-12.)

Code

of Civil Procedure section 474 permits a plaintiff who is ignorant of the name of a defendant to name a Doe in a complaint, and “when his true name is discovered, the pleading or proceeding must be amended accordingly.” (Code Civ. Proc., § 474.) To do so, the plaintiff must have actually been

ignorant of the defendant’s identity when he or she filed the complaint. (*Optical Surplus, Inc. v. Superior Court* (1991) 228 Cal. App. 3d 776, 783-782.) “Ignorance

of the true name of the defendant should not be feigned.” (Scherer v. Mark (1976) 64 Cal. App. 3d 834, 840.) “[S]ection 474 includes an implicit requirement that a plaintiff may not ‘unreasonably delay’ his or her filing of a Doe amendment after learning a defendant’s identity.” (A.N. v. County of Los Angeles (2009) 171 Cal.App.4th 1058, 1066-1067.)

Plaintiff

argues that “Defendant Watson’s argument that she was only expressly referenced in two paragraphs that are insufficient to state an IIED claim against her only reinforces the fact that Plaintiff could not have alleged the facts that led to the Doe Amendment in December 2021 because she was not aware of them.” (Opposition at p. 7.) According to Plaintiff, she learned of facts to support liability against Watson only after discovery in August and September 2025. (Ibid.)

Regardless

whether Plaintiff should have known facts about Watson’s involvement when she initially filed this action, the Court strikes the amendment for failure to timely serve Watson.

“A

plaintiff must serve ‘a defendant within three years after the action is commenced against the defendant.’ ([Code Civ. Proc.,] § 583.210, subd. (a).) ‘[A]n action is commenced at the time the complaint is filed.’ (Ibid.) Dismissal is mandatory where a plaintiff fails to serve a defendant within the statutory time limits. (§ 583.250, subd. (b).) The three-year rule applies where the defendant seeking dismissal was served as a Doe defendant named in the original complaint, later amended to show his or her true name. [Citations.] In short, a plaintiff has three years from the date of filing the complaint to identify and serve a Doe defendant.” (Inversiones Papaluchi S.A.S. v. Superior Court (2018) 20 Cal.App.5th 1055, 1061.) “Service requirements ‘are mandatory and are not subject to extension, excuse, or exception except as expressly provide by statute.’ (§ 583.250, subd. (b).) The Legislature has articulated four conditions that toll the time for service. (§ 583.240, subd. (a).) The conditions ‘must be construed strictly against the plaintiff.’ [Citation.]” (Id. at pp. 1061-1062.) The exceptions include “[t]he defendant was not amenable to the process of the court,” and “[s]ervice, for any other reason, was impossible, impracticable, or futile due to causes beyond the plaintiff’s control. Failure to discover relevant facts or evidence is not a cause beyond the plaintiff’s control for the purpose of this subdivision.” (Code of Civ. Proc., § 583.240, subd. (a), (d).)

Plaintiff

filed this action on December 30, 2021. She

did not name Watson as a Doe defendant until February 25, 2026—over four years later. Because Plaintiff did not serve Watson within

three years of initiating this action, dismissal is mandatory. (Code Civ. Proc., § 583.250.)

Accordingly,

the Court strikes the inclusion of Watson as Doe 3. (See Code Civ. Proc., § 436, subd. (b).)

C. Conclusion

The

motion is GRANTED.

Brianne

Watson is DISMISSED WITH PREJUDICE.

MOTION

FOR PROTECTIVE ORDER

In

light of Watson's dismissal as a party, the motion for protective order or to quash the Notice of Deposition is GRANTED.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 9th day of July 2026

Hon.

Thomas D. Long

Judge

of the Superior Court